

Appendix B: Politically exposed person definition

Below are definitions of different types of politically exposed persons (PEPs).

Consider if you or your representative are a politically exposed person.

Note: Family members and close business associates of persons who hold one of these positions are also considered politically exposed persons.

Foreign PEP

A foreign PEP is an individual who holds or has held a prominent office or position or public function in or for the legislature, executive or judiciary of a foreign country.

This includes an individual who holds or has held any of the following offices or positions:

- head of state or head of government
- member of the executive council of government
- member of a legislature
- minister, deputy minister or equivalent office or position
- judge of a supreme court, constitutional court or other court of general jurisdiction or last resort
- ambassador, high commissioner or charge d'affaires
- high ranking military officer
- head or board member of a government body
- head or board member of a state-owned company or a state-owned bank
- member of a governing body of a political party represented in a legislature.

A foreign PEP is also a family member of an individual listed above or an individual who is known (based on information that's public or readily available) to have:

- joint beneficial ownership of a body corporate or legal arrangement with an individual listed above
- sole beneficial ownership of a body corporate or legal arrangement on behalf or for the benefit of an individual listed above
- any other close business relations with an individual listed above.

Domestic PEP

A domestic PEP is an individual who is in or has been in the following office or position:

- member of the legislature of the Commonwealth or a state or territory
- member of the governing body of a political party represented in the legislature of the Commonwealth or a state or territory
- Governor-General
- governor of a state
- administrator of a territory
- Justice of the High Court
- Judge of the Federal Court of Australia
- Judge of the Supreme Court of a state or territory
- accountable authority, or member of the accountable authority, of a Commonwealth entity within the meaning of the Public Governance, Performance and Accountability Act 2013 (PGPA Act) (for example a Secretary of a Department of State or parliamentary department)
- member of the governing body of a wholly-owned Commonwealth company within the meaning of the PGPA Act
- head (however described) of a department of state or territory, or an agency or authority of a state or territory that has a prominent public function
- head (however described) of a local government council in a state or territory

- the chair of the board, chief executive officer or chief financial officer of a company or other incorporated body that's wholly-owned or majority-owned by a state or territory
- Chief of the Defence Force, Vice Chief of the Defence Force, Chief of Navy, Chief of Army or Chief of Air Force
- officer of the Navy of the rank of Vice Admiral or a higher rank
- officer of the Army of the rank of Lieutenant General or a higher rank
- officer of the Air Force of the rank of Air Marshal or a higher rank
- any of the following offices of the Commonwealth in a foreign country, or to a public international organisation, to which appointments are made by the Governor-General:
 - Ambassador
 - High Commissioner
 - Consul-General
 - Australian representative
 - special representative
 - representative
 - permanent representative
 - Chargé d'Affaires.

A domestic PEP is also a family member of an individual listed above, or an individual who is known (based on information that's public or readily available) to have:

- joint beneficial ownership of a body corporate or legal arrangement with an individual listed above
- sole beneficial ownership of a body corporate or legal arrangement on behalf or for the benefit of an individual listed above
- any other close business relations with an individual listed above.

International organisation PEP

An international organisation PEP is an individual that is entrusted or has been entrusted with a prominent public function, position or office of a public international organisation. This includes a head, deputy head or board member in a public international organisation, such as a United Nations body.

An international organisation PEP is also a family member of one of these individuals, or an individual who is known (based on information that's public or readily available) to have:

- joint beneficial ownership of a body corporate or legal arrangement with an individual entrusted with a prominent public function, position or office of a public international organisation
- sole beneficial ownership of a body corporate or legal arrangement on behalf or for the benefit of an individual entrusted with a prominent public function, position or office of a public international organisation
- any other close business relations with an individual entrusted with a prominent public function, position or office of a public international organisation.

Family members

A family member includes:

- a spouse, de facto partner, or equivalent under any applicable law of a foreign country, of the individual
- a child of the individual
- a spouse or de facto partner, or equivalent under any applicable law of a foreign country, of a child of the individual
- a parent of the individual.